

23VECV04322 23VECV04322

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Tentative Ruling

IM Home Construction v. Johnson,

Case no. 23VECV04322

Hearing date July 21, 2026

Defendants/Cross-Complainants'

Motion for Leave to Amend

Plaintiffs

IM Home Construction, Inc. and Mevorakh sue defendants Johnson and Lefkovitz for contractual fraud; defendants cross-complained against plaintiffs and Western Surety Company for negligence and recovery under Bus. & Prof. Code §7031. Defendants move for leave to amend the cross-complaint to add a claim for fraud. Plaintiffs oppose.

Per

Code Civ. Proc. §473(a)(1) "[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading."

Code Civ. Proc. §576 provides that "[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading." Per California Rules of Court rule 3.1324(a), a party seeking leave to amend must include: (1) the proposed amendment or amended pleading; (2) a statement identifying the allegations in the original pleading to be deleted; and (3) a statement identifying the allegations to be added.

Defendants

assert they learned at deposition on 3/9/26 that: (1) Mevorakh hired unlicensed subcontractors to work on the property; (2) work was completed without permits or government authorization; (3) workers caused water damage which was not repaired; (4) minimal attempts were made to repair the water damage, which was concealed; and (6) structural changes were made without authorization. Decl. Ryan, para. 3. Defendants complied with CRC rule 3.1324.

Plaintiffs

argue the proposed amendment is untimely, and Mevorakh's testimony "reflects testimony that was available months earlier during the ordinary course of discovery." Opp., 3:26-27. Plaintiffs offer no evidence that defendants possessed the facts underlying the proposed amendment prior to Mevorakh's deposition. This motion was brought two months following the deposition. There is no evidence of delay, and the motion is timely.

Plaintiffs

argue prejudice, as the proposed pleading "alters the scope of the case." Opp., 4:5-6. Plaintiffs argue further discovery must be completed to defend against the new fraud claim. Requiring a party to defend against a new cause of action does not constitute prejudice, as that is the burden on a defendant in a lawsuit. To the extent further discovery will be required, the court will discuss a potential continuance.

Plaintiffs

argue the proposed fraud claim should be denied as futile, as it relies on misstated testimony. The court cannot consider merits-based arguments or make factual findings in determining whether to grant leave to amend; such can be raised via motion. GRANTED; defendants to file the proposed amended cross-complaint within 5 court days.